

M/s Cholamandalam Investment and Finance Co. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 April 2019 · Writ - C No. 10118 of 2019 · Writ - C No. 10118 of 2019 · **Writ disposed; representation to EE; recovery stayed 45 days**

HEADNOTE

On a challenge to a Tehsildar recovery citation after an alleged unauthorized-use inspection and assessment, counsel confined the prayer and the licensee did not object. Without any opinion on merits, the Division Bench disposed of the writ: the consumer may represent to the Executive Engineer, who is to decide in accordance with law after hearing, the recovery remaining in abeyance for a limited period.

FACTUAL SUMMARY

The petitioner, a finance company with a branch at Nauwabag, Fatehpur, applied for a 10 kW connection. After sanction and deposit of the estimate and inspection fee communicated on 28 April 2017, an inspection report of 18 May 2017 alleged unauthorized use of electricity, prepared without any employee of the company present. No notice, hearing, or copy of the final assessment preceded a Tehsildar recovery citation dated 30 July 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(c)(i)

unauthorized-use-assessment-recovery

HOLDING

Without expressing any opinion on merits, and on the petitioner's confined prayer with the Electricity Department's no-objection, the writ was disposed of: the consumer may file a representation before the Executive Engineer within 15 days; if filed, that authority shall decide it in accordance with law within 30 days after hearing and considering evidence; the recovery citation dated 30.07.2018 remains in abeyance for 45 days or until that order, whichever is earlier. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment On a challenge to a Tehsildar recovery citation after an alleged unauthorized-use inspection and assessment, counsel confined the prayer and the licensee did not object.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE INSPECTION, ASSESSMENT AND RECOVERY CITATION VIOLATED CLAUSE 6.8(C)(I) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, OR WERE OTHERWISE INVALID

Court expressly declined to opine on merits. ¶ 1